

26TRCV00535 26TRCV00535

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-09-10

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Case Number: 26TRCV00535 Hearing Date: September 10, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

ROGER

SENDERS,

Plaintiffs,

Case No.:

26TRCV00535

v.

[Tentative]

Granted

CITY OF

LOS ANGELES; THOMAS KRELLER; LORIE ALEXANDER and DOES 1 to 99, inclusive,

Defendants.

Hearing

Date: September 10, 2026

Moving Parties: Defendants Thomas Kreller and Lorie Alexander

Responding

Party: Plaintiff Roger Senders

HEARING: Motion for Judgment on the
Pleadings

The

Court considered the moving, opposition, and reply papers.

RULING

The Court grants the Motion for
Judgment on the Pleadings with leave to amend.

BACKGROUND

On February 13, 2026,
Plaintiff Roger Senders filed the Complaint against Defendants City of Los
Angeles, Thomas Kreller, and Lorie Alexander alleging causes of action for
premises liability/dangerous condition of public property and negligence.

On June 22, 2026,
Defendants Thomas Kreller and Lorie Alexander filed the Motion for Judgment on
the Pleadings.

On August 27, 2026,
Plaintiff filed the Opposition.

On September 2, 2026,
Defendant filed the Reply.

LEGAL STANDARD

A defendant may move for judgment on the
pleadings where the court has no jurisdiction over the subject of the cause of
action alleged in the complaint or the complaint does not state facts

sufficient to constitute a cause of action against that defendant. (Code Civ. Proc., § 438 subd. (c)(1)(B).) A motion for judgment on the pleadings is analogous to a general demurrer. (Lance Camper Mfg. Corp. v. Republic Indemnity Co. of Am. (1996) 44 Cal.App.4th 194, 198.) Like demurrers, motions for judgment on the pleadings challenge the legal sufficiency of the allegations, not their veracity. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “The motion provided for in this section may be made as to either of the following: (A) The entire complaint or cross-complaint or as to any of the causes of action stated therein. (B) The entire answer or one or more of the affirmative defenses outlined in the answer.” (Code Civ. Proc., § 438 subd. (c)(2).) “The motion provided for in this section may be granted with or without leave to file an amended complaint or answer, as the case may be.” (Code Civ. Proc., § 438 subd. (h)(1).) All facts alleged in the complaint are deemed admitted, and the complaint is given a reasonable interpretation as a whole and all parts in their context. (Lance, 44 Cal.App.4th at p. 198.) The court does not, however, do so for “conclusions of law or fact, opinions, speculation, or allegations contrary to law or [judicially noticed] facts.” (Stevenson Real Estate Servs., Inc. v. CB Richard Ellis Real Estate Servs., Inc. (2006) 138 Cal.App.4th 1215, 1219-20.) Any defects must either appear on the face of the pleading, or else be taken by judicial notice. (Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321-22.) A motion for judgment on the pleadings may be granted when, “under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law.” (Southern California Edison Co. v. City of Victorville (2013) 217 Cal.App.4th 218, 227.) If a motion for judgment on the pleadings is granted, leave to amend “should be granted if there is any reasonable possibility that the plaintiff can state a good cause of action.” (Virginia G. v. ABC Unified School Dist. (1993) 15 Cal.App.4th 1848, 1852.)

JUDICIAL NOTICE

The Court may take judicial notice of records of (1) any court of this state or (2) any court of record of the United States or of any state of the United States. (Evid. Code § 452 subd. (d).) The Court may also take judicial notice of “Official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States.” (Evid. Code § 452 subd. (c).)

Defendants request the Court take judicial notice of Thomas Kreller and Lorie Alexander's Cross-Complaint for Indemnity, Contribution, and Declaratory Relief Against City of Los Angeles; and Roes 1 to 20, Inclusive, filed in this action on May 6, 2026, and City of Los Angeles's Cross-Complaint—Personal Injury, Property Damage, Wrongful Death against Thomas Kreller, Lorie Alexander, and Roes 1-10, filed in this action on July 22, 2026

The Court grants these requests pursuant to Evidence Code section 452 subdivision (d).

DISCUSSION

Causes of Action 1, 2, and 3 –
Negligence and Premises Liability

The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages. (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.) Those who own, possess, or control property generally have a duty to exercise ordinary care in managing the property to avoid exposing others to an unreasonable risk of harm. (Annock v. Peterson Enterprises, LLC (2014) 232 Cal.App.4th 32, 37.) The existence and scope of duty are legal questions for the court. (Id. at p. 36.) If there is a condition that poses a danger to customers and others on the premises, the property owner is “under a duty to exercise ordinary care either to make the condition reasonably safe for their use or to give a warning adequate to enable them to avoid the harm.” (Bridgman v. Safeway Stores, Inc. (1960) 53 Cal.2d 443, 446.)

Defendants argue that Plaintiff's premises liability cause of action fails as a matter of law because the Sidewalk Accident Decisions Doctrine limits an abutting landowner's tort liability for injuries to third parties. (Jordan v. City of Sacramento (2007) 148 Cal.App.4th 1487, 1490-1491.) Defendants contend that although Streets and Highways Code section 5610 imposes a duty of repair on abutting owners regardless of who created the defect, it does not create tort liability to pedestrians unless the owner created the defect or exercised dominion or control over the sidewalk. (Williams v. Foster (1989) 216 Cal.App.3d 510, 521.) Defendants argue that Plaintiff has not identified the alleged defect or alleged that Defendants caused or contributed to it, and that

imposing liability based solely on Defendants' ownership of adjacent property would amount to improper strict liability barred by the doctrine.

As

to negligence, Defendants argue that Plaintiff fails to allege duty, breach, and proximate cause because Plaintiff alleges only that the accident occurred adjacent to property owned by Defendants, without alleging that Defendants created the hazard or controlled the property. (*Lueras v. BAC Home Loans Servicing, LP* (2013) 221 Cal.App.4th 49, 62.) Defendants contend that Plaintiff's allegation that the defective conditions were caused by the defendants is conclusory and must be disregarded.

In Opposition, Plaintiff argues that

the Complaint sufficiently alleges facts to bring this case within the exception to the Sidewalk Doctrine. Plaintiff acknowledges the general rule that Streets and Highways Code section 5610 does not by itself create tort liability to injured pedestrians, but argues that Defendants understate the exception, under which the immunity gives way when the property owner created the defect or exercised dominion or control over the abutting sidewalk, a question courts resolve on developed factual records after discovery. (*Jordan*, supra, 148 Cal.App.4th 1487, 1490.) Plaintiff contends the Complaint alleges both triggers, because it alleges Defendants operated, maintained, repaired, inspected, and controlled the sidewalk, and separately alleges Defendants created the dangerous condition.

Plaintiff

further argues that Defendants' contention that these allegations are too conclusory misstates the pleading standard, because California's notice-pleading standard requires only the ultimate facts establishing each element, not the evidentiary details of how the defect arose, which are peculiarly within Defendants' knowledge and are properly explored through discovery. (*Semole v. Sansoucie* (1972) 28 Cal.App.3d 714, 719.) Plaintiff further argues that whether Defendants created the defect or controlled the sidewalk is a factual determination that cannot be made on a motion for judgment on the pleadings, where the Complaint's allegations must be accepted as true.

As

to negligence, Plaintiff argues that the Complaint alleges each element by pleading that Defendants owed a duty to maintain, inspect, and repair the

premises and adjacent sidewalk, breached that duty by creating or failing to correct the dangerous condition despite actual notice, and thereby proximately caused Plaintiff's injuries. Plaintiff contends that Defendants' negligence argument merely repackages their Sidewalk Accident Doctrine argument and fails for the same reasons, because the Complaint's allegations of creation and control are sufficient at the pleading stage regardless of the label placed on the cause of action.

"Under the common law, a landowner does not have any duty to repair abutting sidewalks along a public street, and does not owe any duty to pedestrians injured as a result of a defect in the sidewalks." (Jordan, supra, (2007) 148 Cal.App.4th 1487, 1490.) A nearly 100-year-old statute imposes a duty to repair an abutting sidewalk, "but does not of itself create tort liability to injured pedestrians or a duty to indemnify municipalities, except where a property owner created the defect or exercised dominion or control over the abutting sidewalk." (Ibid.)

The Complaint alleges that Defendants Kreller and Alexander were in possession of and owned, operated, maintained, repaired, inspected, and controlled the sidewalk. (Complaint ¶ 8 and 14.) And that Defendants caused the dangerous condition (Complaint ¶ 25, and 14.) However, the Complaint fails to state what the dangerous condition was, how Defendants created it, or how Defendants controlled a public sidewalk. Consequently, the Court finds that the Complaint's allegations regarding control of the sidewalk and creation of the dangerous condition are conclusory and must be disregarded. (People ex rel. Harris v. Pac Anchor Transportation, Inc. (2014) 59 Cal.4th 772, 777.) Thus, the Complaint fails to allege the control required to plead a cause of action for premises liability or negligence.

Therefore, the Court grants the Motion for Judgment on the Pleadings with leave to amend.